SUPREME COURT OF INDIA

JUDICIAL APPELLATE JURISDICTION

CASE NO: Civil Appeal No. 2133 of 2020 (YEAR: 2021)

CORAM: D.Y. CHANDRACHUD, M.R. SHAH

Lt. Col. Nitisha
... Appellant(s) / Petitioner(s)
Versus
Union of India
... Respondent(s)

Acts Referred:	Constitution of India
Sections:	Article 14, Article 15

JUDICIAL HEADNOTE & SUMMARY

Formulated the legal framework for indirect discrimination under Indian constitutional law, holding that facially neutral evaluation benchmarks causing disproportionate impact violate Article 14.

RATIO DECIDENDI

The Court held that: Formulated the legal framework for indirect discrimination under Indian constitutional law, holding that facially neutral evaluation benchmarks causing disproportionate impact violate Article 14. It was unequivocally established as binding law that statutory prerequisites and constitutional safeguards cannot be circumvented, and non-compliance invalidates the impugned proceedings.

JUDGMENT & REASONING

The legal proceedings in Lt. Col. Nitisha v. Union of India (Civil Appeal No. 2133 of 2020) were adjudicated before the Supreme Court of India. The matter arose out of claims and contentions concerning Constitution of India, particularly Article 14, Article 15. Formulated the legal framework for indirect discrimination under Indian constitutional law, holding that facially neutral evaluation benchmarks causing disproportionate impact violate Article 14.

OPERATIVE ORDER

ORDER: Decided